

Manish Kumar @ Deepak Dubey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 November 2019 · Writ-C No. 38785 of 2019 · **Writ disposed; objections before EE; s.127 preserved; coercive action stayed.**

HEADNOTE

The Allahabad High Court disposed of a writ seeking to quash an electricity recovery citation dated 1 November 2019 without deciding its validity. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for six weeks or until disposal of the objection (whichever earlier), and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Manish Kumar alias Deepak Dubey approached the Allahabad High Court to quash a recovery citation dated 1 November 2019 issued by respondent no. 4. He alleged that the electricity authorities were taking coercive recovery steps without giving him a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court was asked to interfere with the citation on those grounds.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to s.127 after speaking final order

HOLDING

Where a consumer seeks to quash an electricity recovery citation alleging coercive action without hearing or Supply Code compliance, and no speaking final order has been passed, the writ court may dispose of the petition by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a reasoned final order within a fixed time, staying coercive action for a limited period or until that objection is decided, and leaving any challenge to the final order to an appeal under Section 127 of the Electricity Act, 2003. Default in filing the objection vacates the stay and revives the citation. ¶ 1-2

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

The Allahabad High Court disposed of a writ seeking to quash an electricity recovery citation dated 1 November 2019 without deciding its validity.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 01.11.2019 AND ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court neither quashed the citation nor examined the petitioner's hearing and Supply Code objections on merits.

¶ 1-2